

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Marie Seguy	Team: Squad #07	CCRB Case #: 202205076	☐ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Thursday, 06/16/2022 12:00 AM, Tuesday, 08/02/2022 12:00 AM, NA, 07/__/2022 12:00 AM	Location of Incident: Over the phone	18 Mo. SOL 12/16/2023	Precinct: 123
Date/Time CV Reported Wed, 08/03/2022 7:32 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Wed, 08/03/2022 7:32 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Michael Levay	07109	945916	123 DET SQD
2. DT3 Ivan Koval	01296	954030	123 DET SQD
3. Officers			

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Ivan Koval	Discourtesy: On June 16th, 2022, Detective Ivan Koval acted discourteously toward § 87(2)(b)	A . Unable to Determine
B . Officers	Discourtesy: On an unknown date in July of 2022, officers acted discourteously toward § 87(2)(b)	B . Officer(s) Unidentified
C . DT3 Michael Levay	Discourtesy: On August 2nd, 2022, Detective Michael Levay acted discourteously toward § 87(2)(b)	C . Unable to Determine

Case Summary

On August 3, 2022, § 87(2)(b) filed this complaint to the CCRB through the online website (**Board Review 01**).

On June 16, 2022, on unknown dates in July 2022, and on August 2, 2022, at unknown times, § 87(2)(b) called the 123 Precinct in Staten Island and talked to detectives of the 123-detective squad to complain about his ex-girlfriend and to retrieve stolen property. On June 16, 2022, Detective Ivan Koval (123 Detective Squad) allegedly hung up the phone on § 87(2)(b) (**Allegation A: Discourtesy – Action, unable to determine**). In July 2022, an officer and detectives from the 123 Precinct allegedly hung up the phone on § 87(2)(b) (**Allegation B: Discourtesy – Action, officers unidentified**). On August 2, 2022, Detective Michael Levay (123 Detective Squad) allegedly hung up the phone on § 87(2)(b) (**Allegation B: Discourtesy – Action, unable to determine**).

No body-worn camera (BWC) footage or audio recordings were recorded during this incident.

Findings and Recommendations

On August 9, 2022, § 87(2)(b) was interviewed over the phone (**Board Review 02**).
On August 29, 2022, Detective Levay was interviewed in person at the CCRB (**Board Review 03**).
On September 15, 2022, Detective Koval was interviewed in person at the CCRB (**Board Review 04**).

It is undisputed that § 87(2)(b) called the 123 Precinct multiple times to complain about his ex-girlfriend, § 87(2)(b), living on Staten Island and to seek help to retrieve his stolen dog. Those calls were redirected to the 123-detective squad. It is also undisputed that § 87(2)(b) talked to both Detective Levay and Detective Koval over the phone more than once. All parties involved also acknowledged that § 87(2)(b) mentioned he obtained a court order from a judge in New Jersey seeking the help of the 123 Precinct to retrieve his dog from § 87(2)(b). However, the manner in which those phone calls ended is disputed.

Allegation (A) Discourtesy: Detective Ivan Koval acted discourteously toward § 87(2)(b).

On June 16, 2022, § 87(2)(b) reached Detective Koval over the phone regarding the ongoing issue he had with retrieving his stolen dog from his ex-girlfriend, § 87(2)(b). § 87(2)(b) explained that § 87(2)(b) broke into his house in New Jersey and stole both his money and his dog. As § 87(2)(b) lived in Staten Island, he called the 123 Precinct for help. Detective Koval knew the case and referred to the problem as “ridiculous” to § 87(2)(b) and then hung up the phone on § 87(2)(b).

Detective Koval stated that he was first assigned to investigate § 87(2)(b)’ complaint against § 87(2)(b) in March or April 2022, and knew § 87(2)(b) from that case. After the case was closed, § 87(2)(b) reached Detective Koval over the phone to retrieve his dog. Detective Koval explained that it was a civil matter and that § 87(2)(b) needed to go to court to retrieve his property.

Over a month later, possibly on June 16, 2022, § 87(2)(b) reached Detective Koval over the phone again and mentioned the court order to receive help from the 123 Precinct to retrieve his dog. Detective Koval gave § 87(2)(b) the steps to take, including coming to Staten Island with the court order. At the end of the phone call, both § 87(2)(b) and Detective Koval said “goodbye” and then both ended the call. Detective Koval stated that the call did not end abruptly, but normally with § 87(2)(b) being very polite and calm.

§ 87(2)(b) alleged that on June 16, 2022, Detective Koval hung up the phone on him, while Detective Koval stated that both parties said “goodbye” before the end of the call and that § 87(2)(b) was polite and calm. There are no audio recordings or records of this call. § 87(2)(g)

§ 87(2)(b) It is therefore recommended that **Allegation A** be closed as **unable to determine**.

Allegation (B) Discourtesy: Officers acted discourteously toward § 87(2)(b).

§ 87(2)(b) alleged that he called the 123 Precinct multiple times in July 2022, and believed it was on July 8, July 12, and July 14, 2022, during which Detective Koval, Detective Levay, and an officer hung up the phone on him. § 87(2)(b) did not recall on which date specifically he spoke to whom and was unsure of the dates

of July 8 and July 14. § 87(2)(b) was sure that he called on July 12, 2022, because it was right after he came back from a trip to Los Angeles, and it was the day that he retrieved his dog. § 87(2)(b) called the 123 Precinct those three times to talk about the ongoing issue with his ex-girlfriend and to present his court order from a New Jersey Court in regards to retrieving his dog. On July 14, 2022, he called to complain about § 87(2)(b) stealing his social media account, but the detective allegedly told him that they did not have enough proof to file the complaint and hung up the phone. § 87(2)(b) went to the precinct that day.

§ 87(2)(b) also alleged that he spoke over the phone to another officer from the 123 Precinct on one of those dates but did not know his name and never saw or talked to him again. § 87(2)(b) had no additional information to identify this officer.

On July 8 and July 14, 2022, Detective Koval was on his regular day off (RDO), while on July 12, 2022, he was on vacation; he could not have answered the phone at the precinct on those dates (**Board Review 5**).

Detective Levay was on his RDO on July 12, 2022, and does not take professional calls when he is not working, so he could not have been the one talking to § 87(2)(b) on that date (**Board Review 6**). Detective Levay was working on July 8 from 13:45 to 01:00 the next day and responded to a GLA at 15:20 and an RTC at 18:50. Detective Levay also worked on July 14 from 14:55 to 01:00 the next day. Detective Levay stated that on July 14, 2022, § 87(2)(b) violated the order of protection from § 87(2)(b) by commenting on her social media post. Detective Levay interviewed § 87(2)(b) and did not recall speaking on the phone with § 87(2)(b) during this investigation until August 2022.

§ 87(2)(b) affirmed that he spoke to detectives and an officer in July 2022, and that all hung up the phone on him, but he does not have specific dates, times, or call logs that would allow the investigation to determine the member of service who might have answered. Moreover, the potential dates mentioned by § 87(2)(b) mostly do not match Detective Koval schedules or Detective Levay schedule of July 12, 2022. Finally, because there is no confirmation of the dates from either § 87(2)(b) or Detective Levay, the investigation could not confirm that Detective Levay spoke over the phone to § 87(2)(b) on July 8 and July 14. § 87(2)(g)

It is therefore recommended that **Allegation B** be closed as **officers unidentified**.

Allegation (C) Discourtesy: Detective Michael Levay acted discourteously toward § 87(2)(b).

§ 87(2)(b) alleged that on August 2, 2022, Detective Levay called to ask him to come to the 123 Precinct in regard to a violation he committed by contacting § 87(2)(b) through social media. Detective Levay asked § 87(2)(b) if he had a lawyer to which § 87(2)(b) answered “yes,” leading Detective Levay to tell him “Have your attorney call me” right before hanging up the phone. That same day, § 87(2)(b) called back Detective Levay to tell him that he spoke with his lawyer who determined there was no need to involve his lawyer in this matter. § 87(2)(b) then told Detective Levay that he was recording the call, although it was not true. § 87(2)(b) alleged that Detective Levay immediately hung up the phone after this without saying anything.

According to Detective Levay’s statement, at the beginning of August 2022 (possibly on August 2), he called § 87(2)(b) to ask him to turn himself in for violating an order of protection from § 87(2)(b). Detective Levay informed § 87(2)(b) that he had an active I-card and eventually would get arrested. During this conversation, Detective Levay explained that he would only talk to § 87(2)(b) over the phone in the presence of his lawyer and said, “All right, we’ll talk in the future. Have your attorney call me.” Detective Levay had nothing else to add and § 87(2)(b) did not add anything either, so Detective Levay ended the phone call because the conversation was over.

§ 87(2)(b) alleged that on August 2, 2022, Detective Levay hung up the phone abruptly during their conversation while Detective Levay stated that the conversation was over. § 87(2)(g)

It is therefore recommended that **Allegation C** be closed as **unable to determine**.

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to one CCRB complaint and has been named as a victim in three allegations (**Board Review 07**).
 - § 87(2)(b).
- Detective Michael Levay has been a member of service for 14 years and this is the first CCRB complaint to which he has been a subject (**Board Review 08**).
- Detective Ivan Koval has been a member of service for nine years and has been a subject in one CCRB complaints and six allegations, all of which were exonerated (**Board Review 09**). § 87(2)(g)

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of September 21, 2022, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this incident (**Board Review 10**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 7

Investigator:	<u>Marie Seguy</u> Signature	<u>Investigator Marie Seguy</u> Print Title & Name	<u>October 3, 2022</u> Date
Squad Leader:	<u></u> Signature	<u>Manager Vanessa Rosen</u> Print Title & Name	<u>October 6, 2022</u> Date
Reviewer:	<u></u> Signature	<u></u> Print Title & Name	<u></u> Date